

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cordell Hackshaw	Team: Team # 2	CCRB Case #: 201009735	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 07/13/2010 8:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/13/2012	Precinct: 17
Date/Time CV Reported Tue, 07/13/2010 9:24 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/19/2010 11:06 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Adriano Deleon	02580	940069	017 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Wayne Scott	28809	944171	017 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Adriano Deleon	Discourtesy: PO Adriano Deleon spoke rudely to § 87(2)(b)	A . Unsubstantiated
B . POM Adriano Deleon	Abuse: PO Adriano Deleon threatened § 87(2)(b) with the use of force.	B . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint via telephone with the Internal Affairs Bureau (IAB) on July 13, 2010 (Encl. B1). The complaint was subsequently referred to the Civilian Complaint Review Board (CCRB) on July 19, 2010 (Encl. B2-B3).

On July 13, 2010, at approximately 8:30 p.m., § 87(2)(b) called 911 to report that her sister, § 87(2)(b) was missing. PO Deleon and PO Scott responded to § 87(2)(b)'s apartment at § 87(2)(b) in Manhattan. The following allegations resulted from the interaction:

- **Allegation A – Discourtesy: PO Adriano Deleon spoke rudely to § 87(2)(b)**
- **Allegation B – Abuse of Authority: PO Adriano Deleon threatened § 87(2)(b) with the use of force.**

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **Unsubstantiated**.

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) Asian female who § 87(2)(b) with black hair and black eyes.

CCRB Statement

The CCRB interviewed § 87(2)(b) on July 22, 2010 (Encl. B4-B7). On July 13, 2010, at approximately 8:00 p.m., § 87(2)(b) called 911 from her home § 87(2)(b) to report that her twin-sister, § 87(2)(b) § 87(2)(b) has been missing since July 8, 2010. § 87(2)(b) was not drinking or under the influence of drugs at the time and during the incident. § 87(2)(b)

§ 87(2)(b) She has been living with § 87(2)(b) since then and had never disappeared before. She was always at home every day when § 87(2)(b) returned from work. § 87(2)(b) explained the situation to the operator and was unsure about initially calling 911. The operator told § 87(2)(b) that she was correct to call 911 after § 87(2)(b) had explained the situation. § 87(2)(b) provided all her contact information to the operator who stated that the police would be there shortly. § 87(2)(b) was home alone.

Two uniformed officers arrived at the apartment. § 87(2)(b) identified these officers as PO Deleon and PO Scott. She read their names from their nameplates. § 87(2)(b) noticed that the officers had a rather annoyed tone as if they preferred not to be dealing with this matter. § 87(2)(b) found that officers' questions were not pertinent to the matter at hand. They kept asking in an abrupt manner how it was that § 87(2)(b) knew that her sister was missing. § 87(2)(b) tried to explain § 87(2)(b) that it was very unlikely she could be at someone's home as she was ordered to be at § 87(2)(b)'s home. PO Deleon said to § 87(2)(b) that perhaps her sister was not missing and that perhaps she did not want to be found. § 87(2)(b) told PO Deleon that if she were allowed to explain herself fully, she would be able to show why she think her sister was missing as she had no where else to go and no friends. PO Deleon became upset and said, "If you going to have a fucking attitude, I am not going to help you." PO Deleon also

raised his fists and placed them in front of § 87(2)(b)'s face. PO Deleon was standing about two feet away from § 87(2)(b). § 87(2)(b) was shocked at PO Deleon's action and so went over to him to ask for his badge number. He screamed the information to § 87(2)(b). § 87(2)(b) asked if this was how he spoke to persons requiring help for a missing sister but PO Deleon continued to act in an impatient manner. § 87(2)(b) never shouted at the officers or used profanity to the officers."

§ 87(2)(b) then directed her attention to PO Scott. PO Scott appeared more courteous but was not helpful in the least. He refused to look at § 87(2)(b)'s paperwork showing that her sister was supposed to be in the apartment. § 87(2)(b) then asked him if she had done something wrong in calling 911 as the officers were not offering any assistance. PO Scott replied that § 87(2)(b) should have called 311 and not 911. During the course of speaking to PO Scott, § 87(2)(b) said, "well as I was trying to explain before the other officer interrupted me..." At those words, PO Deleon became even more incensed and began referring to § 87(2)(b) as a "dumb fuck." He kept repeating "dumb fuck" even after he left the apartment. § 87(2)(b) stated that he used the term at least five times. The officers then left the apartment. The entire interaction last approximately 5-7 minutes. § 87(2)(b) called 311 who connected her again to 911. Two different uniformed officers came to § 87(2)(b)'s home and took her information.

NYPD Statements:

Subject Officer: PO ADRIANO DELEON

- *PO Adriano Deleon is a § 87(2)(b)-old Hispanic male who is § 87(2)(b) with black hair and brown eyes.*
- *On July 13, 2010, he was working from 3:00 p.m. to 11:35 p.m. with PO Wayne Scott. They were both wearing uniform and in a marked patrol car.*

Memo book

At 8:45 p.m., PO Deleon responded to a call for a missing person from § 87(2)(b). At 9:00 p.m., PO Deleon determined the job to be unnecessary (Encl. C1-C3).

CCRB Statement

The CCRB interviewed PO Deleon on September 22, 2010 (Encl. C4-C5). This job location was not within PO Deleon's sector but was re-assigned to them from Central. PO Deleon and PO Scott responded to the location and found § 87(2)(b) to be a bit nervous and/or disoriented. § 87(2)(b) explained that her sister was missing from New Jersey. PO Deleon explained that NYPD officers could not assist with this matter as it was outside their jurisdiction. PO Deleon asked if the missing person was okay and § 87(2)(b) said that her sister was. PO Deleon stated that his demeanor was calm but § 87(2)(b) was a bit upset with the fact that the officers could not assist her. § 87(2)(b) never showed any photograph of her sister nor was her sister's mental state mentioned. PO Deleon stated that it appeared as though § 87(2)(b) had a bit of a "language barrier." PO Deleon never told § 87(2)(b) "If you gonna have a fucking attitude, I am not going to help you." PO Deleon never placed his hands in § 87(2)(b)'s face. PO Deleon never referred to § 87(2)(b) as a "dumb fuck." PO Deleon never told § 87(2)(b) that she should call 311. The entire interaction lasted about five minutes.

Witness Officer: PO WAYNE SCOTT

- *PO Wayne Scott is a § 87(2)(b)-old male of mixed race who is § 87(2)(b) with black hair and brown eyes.*

- On July 13, 2010, PO Scott worked from 3:00 p.m. to 11:35 p.m. with PO Adriano Deleon. They were both assigned to patrol sectors E and F of the 17th Precinct. They were both dressed in uniform.

Memo book

On July 13, 2010, at approximately 8:45 p.m., there was a radio run for a missing person at § 87(2)(b) § 87(2)(b). At 9:08 p.m., PO Scott marked the job as being unnecessary as no one was missing. He noted that it was a job for 311 (Encl. C6-C8).

CCRB Statement

The CCRB interviewed PO Scott on September 22, 2010 (Encl. C9-C10). PO Scott and PO Deleon responded to § 87(2)(b)'s apartment for a call for a missing person. When they arrived at the apartment, § 87(2)(b) explained that her sister was missing. § 87(2)(b) appeared to be concerned for her sister's well being and a bit "scatterbrain." She attempted to explain who her sister was, where her sister was and where she went missing. However, § 87(2)(b) stated that her sister was in New Jersey and she had no telephone number for her sister. § 87(2)(b) explained that her sister was missing since July 8, 2010 as that was the last time she heard from her sister. PO Scott stated that there was a "speech barrier" as § 87(2)(b) did not understand the concept of "missing." § 87(2)(b) was not forthcoming with information about her sister. It appeared as though the sister had not contacted § 87(2)(b) and was not missing. PO Scott told § 87(2)(b) to contact New Jersey as that was the place of her last known address. § 87(2)(b) never stated that her sister lived in her apartment. § 87(2)(b) never § 87(2)(b) showed any type of documentation. § 87(2)(b) showed a picture of her sister but PO Scott thought it was only a picture of § 87(2)(b) as she mentioned that her sister was an identical twin. PO Scott got the impression that § 87(2)(b) was making up the entire missing person. PO Deleon was calm through out the interaction. PO Scott never heard PO Deleon using any sort of profanity to § 87(2)(b). PO Scott never heard PO Deleon say "If you going to have a fucking attitude, I am not to help you" or refer to § 87(2)(b) as a "dumb fuck." PO Deleon never raised his fists in § 87(2)(b)'s face.

Both PO Scott and PO Deleon told § 87(2)(b) that she could also call local area hospitals in New Jersey in an attempt to find her sister. She can also call 311 to find information for hospitals. PO Scott and PO Deleon both then left the apartment. The entire interaction lasted about five minutes.

NYPD Documents

SPRINT

At 8:34 p.m., § 87(2)(b) called 911 to report her sister § 87(2)(b) was missing since last Thursday. She provided her address and call back information. At 8:43 p.m., PO Deleon and PO Scott received the call and were advised at 8:48 p.m. when they arrived on the scene, § 87(2)(b). The patrol sergeant was also notified. At 9:07 p.m., PO Deleon and PO Scott left the scene and marked the job as unnecessary (Encl. D1-D4).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of September 30, 2010 with regard to the incident.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian's CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (Encl. A2).

Subject Officer CCRB History

- PO Deleon has been a member of the service for four years and there are no substantiated CCRB allegations against him (Encl. A1).

Conclusion

Identification of Subject Officer

PO Deleon acknowledged interacting with § 87(2)(b)

Investigative Findings and Recommendations

Allegation A – Discourtesy: PO Adriano Deleon spoke rudely to § 87(2)(b)

Allegation B – Abuse of Authority: PO Adriano Deleon threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that during her brief interaction with PO Deleon and PO Scott about her missing sister, PO Deleon became incensed, telling her “If you going to have a fucking attitude, I am not going to help you” as he raised his fists in her face in a threatening manner. § 87(2)(b) further alleged that PO Deleon repeatedly referred to her as a “dumb fuck.” Both PO Deleon and PO Scott denied both allegations claiming that § 87(2)(b) seemed out of sorts and was unable to communicate fully the circumstances surrounding her missing sister. § 87(2)(g)

Therefore, it is recommended that **Allegations A and B be closed as Unsubstantiated.**

Team: _____

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Investigator: _____	<u>Cordell Hackshaw</u>	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date